Initial Details Prosecution Case

Regina

v

Tony Fillipe

IDPC published date

28/02/2019

URN

78MM0951101

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CHARGE(S)

Surname: **TYLER**	Domestic Violence : ☐	Custody No. **C00000004**
Forename(s): **FRED RICK**	First Arrest Date: **16/08/2016 21:20**	URN **00 F5 3333 3 11**
Address: **25 COURTHOUSE ROAD, EXETER, DEVON United Kingdom**	PO ☐ YO ☐ No.	A/S **00/0000/00/0000001B**
		Internal A/S **0000ABCD000000Y**
	Gender: **Male**	Date of birth **27/12/1994**
	Ethnicity Code: PNC	**1. White - North European**
	16-point (self-determined) system	**W1. White British**
Postcode:	Interpreter: language	
Contact Telephone No.	Name of interpreter	
Driving Licence No:		

You are charged with the offence(s) shown below. You do not have to say anything. But it may harm your defence if you do not mention now, something which you later rely on in court. Anything you do say may be given in evidence.

Sequential	Charge(s)	Offence Code (CCCJS)
	(3) On 16/08/2016 at BELL STREET, CENTRALE, EXETER, DEVON, UNITED KINGDOM, robbed PENNY GUERRERO of a IPHONE7 MOBILE TELEPHONE of a value unknown. **-- STATEMENT OF FACTS:** **-- LEGISLATION: 'Contrary to section 8(1) of the Theft Act 1968.'** **-- CCCJS CODE: 'TH68023'** **-- ACPO: '5.1.1.1'** **-- PNLD CODE: 'H432'**	

Reply (if any):
(3) .

Signed (person charged):

Signed (appropriate adult):

Officer charging Surname: **GORDON**	Rank: **Sergeant**	No. **9999**	Station: **PORT VALE CUSTODY SUITE**	
Officer in case Surname: **WELCH**	Rank/Job Title: **Constable**	No. **5555**	Station: **EXETER**	
Charge accepted Surname: **GORDON**	Rank/Job Title: **Sergeant**	No. **9999**	Time: **12/01/2017 09:24**	

FOR POST-CHARGE UNCONDITIONAL BAIL ONLY (for all other types of bail use MG4A)

I understand that I am granted bail and must surrender to the custody of **EXETER CROWN COURT**

at (full address) **EXETER COMBINED COURT CENTRE, TIME SQUARE, EXETER, DEVON United Kingdom**

on **24/01/2017** time **09:45**

I have been informed that if I fail to do so I may commit an offence and be fined, imprisoned or both

V. 03/2016 Custody Record to be endorsed that 2nd page of MG 4 (PCE4C) has been handed to the detained person.

V. 03/2016 Custody Record to be endorsed that 2nd page of MG 4 (PCE4C) has been handed to the detained person.

Officer granting: Surname	**GORDON**	Rank	**Sergeant**	No	**9999**	Time:	**12/01/2017 09:22**

V. 03/2016 Custody Record to be endorsed that 2nd page of MG 4 (PCE4C) has been handed to the detained person.

Tel No

RESTRICTED (when complete)

CHARGE(S)

Surname: **TYLER**	Domestic Violence : ☐ Custody No.	**C00000004**
Forename(s): **FRED RICK**	First Arrest Date: **16/08/2016 21:20** URN	**00** **F5** **3333 3** **11**
Address: **25 COURTHOUSE ROAD, EXETER, DEVON United Kingdom**	PO ☐ YO ☐ No. A/S	**00/0000/00/0000001B**
	Internal A/S	**0000ABCD000000Y**
	Gender: **Male** Date of birth	**27/12/1994**
	Ethnicity Code: PNC	**1. White - North European**
	16-point (self-determined) system	**W1. White British**
Postcode:	Interpreter: language	
Contact Telephone No.	Name of interpreter	
Driving Licence No:		

You are charged with the offence(s) shown below. You do not have to say anything. But it may harm your defence if you do not mention now, something which you later rely on in court. Anything you do say may be given in evidence.

Sequential	Charge(s)	Offence Code (CCCJS)
	(3) On 16/08/2016 at BELL STREET, CENTRALE, EXETER, DEVON, UNITED KINGDOM, robbed PENNY GUERRERO of a IPHONE7 MOBILE TELEPHONE of a value unknown. **-- STATEMENT OF FACTS:** **-- LEGISLATION: 'Contrary to section 8(1) of the Theft Act 1968.'** **-- CCCJS CODE: 'TH68023'** **-- ACPO: '5.1.1.1'** **-- PNLD CODE: 'H432'**	

Reply (if any):

(3) .

Signed (person charged):

Signed (appropriate adult):

Officer charging Surname: **GORDON**	Rank: **Sergeant**	No. **9999**	Station: **PORT VALE CUSTODY SUITE**	
Officer in case Surname: **WELCH**	Rank/Job Title: **Constable**	No. **5555**	Station: **EXETER**	
Charge accepted Surname: **GORDON**	Rank/Job Title: **Sergeant**	No. **9999**	Time: **12/01/2017 09:24**	

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Tel No

DIRECTOR'S GUIDANCE STREAMLINED PROCESS

POLICE REPORT URN

Defendant 1.	**Carol Kelly**	**Anticipated Plea**	
Defendant 2.	**Name**	**Anticipated Plea**	

1. KEY EVIDENCE. 'key evidence' is any evidence which taken together establishes all the points which need to be proved. The summary should be set out in chronological order so that it tells the story of the offence (not the investigation) and covers each of the **'points to prove'**. It should be made clear which witness (provide name & status: e.g. key eye witness, victim) can provide the evidence summarised. Witnesses who give the same evidence or deal with procedure (charge, interview etc) should be listed in Section 3 below. ***State value of property stolen or damaged and what recovered.***

DIRECTOR'S GUIDANCE STREAMLINED PROCESS

POLICE REPORT URN

common assault by carol kelly on Mr Curtis at Zanzeebar night club at 00.30hrs on 23rd July 2008. Threatening behaviour on the same date and time (S4 POA)

Key Witnesses
Mr Curtis, door supervisor, victim of the assault.
Ms Giles, customer, standing in line at the club, was pushed out of line and threatened by the defendant.
Mr Graveney - door supervisor - Zanzeebar Nightclub - observed the assault and detained Ms Kelly.
At 00:30 hrs this morning outside Zanzeebar Nightclub, in the centre of town, Mr Curtis (Club Security Officer) refused entry to a woman (Carol Kelly 23yrs) who was part of a hen party of around 15 women. Mr Curtis will say that Ms Kelly was trying to force her way to the front of the queue aggressively pushing those not in her party out of the line telling them to "Fuck Off" then calling her friends to join her.

On being refused entry she accused Mr Curtis of being sexist and when he told her to go away she struck him twice to the face. He immediately felt pain and blood ran from his mouth where the second blow struck. Ms Kelly ran off and was chased by another security officer, Mr Graveney.
Officers travelling in a marked van passed the scene and stopped to find out what was happening.
Mr Graveny detained Ms Kelly close by.
PC Harte arrested Ms Kelly on suspision of assault, she was cautioned and replied " It was only a love slap".
PC Harte noted that Kelly smelt strongly of alcohol .

The area is well lit by both street and club door lighting.
PC Charlton spoke with Mr Curtis and saw that he had a bruised eye, swollen upper lip and a small cut to his lower lip.
An ambulance crew attended (Sue Field & Safdar Singh) and treated Curtis at the scene.
Ms Claire Giles approached Sgt Illingworth and told him that she was pushed out of line and was threatened by Ms Kelly. She is supported by her 3 companions Nicola Brown, Kay Green and Vicky Black.

DIRECTOR'S GUIDANCE STREAMLINED PROCESS

POLICE REPORT URN

2. DEFENDANT INTERVIEW. ***Identify the interviewing officer.*** Set out any explanation the defendant gave as to how the offence happened; include any mitigation and remorse put forward. If **CCTV** is **'key'**, record the defendant's response/reaction if it was shown in interview. Summarise the explanation of the defendant aloud at the conclusion of the interview and note that here. State if no comment made in interview or prepared statement handed over and obtain a copy. Note any special warnings given.

Interviewed by DC's 2151 Chapman & 909 Holder, between 9.57 & 10.19 (24th July 200..)

Present Solicitor Ms Khan.

In Interview Ms Kelly admitted striking Mr Curtis blaming her actions on an excess of alcohol.

DC Holder summarised her account " You admit pushing into the queue and you accept others would have found your behavour threatening. You admit to slapping the security officer in the face when he refused you entry".

Ms Kelly replied "I was out with the girls having a good night, that bloke had no sense of humour and would'nt let me in so I slapped him a couple of times. Now I am sober I know how silly I was, if I upset anyone I am sorry".

3. NON KEY EVIDENCE. List the witnesses not summarised in section 1 and state what they contribute eg. additional eye witness, arresting officer, present at arrest but dealing with passenger/member of public, charging officer, officer seized CCTV.

Sgt Illingworth - travelling in the police van - saw the defendant chased and apprehended - was approached by Ms Giles,

Ms Brown and Ms Black - they complained they had been pushed and threatended by the defendant.

PC Robinson - travelling in the police van - saw the defendant chased and apprehended.

PC Harte - arresting officer - travelling in the police van - saw defendant chased and apprehended

PC Charlton - travelling in the police van - saw the defendant chased and apprehended - observed Mr Curtis' injuries which are noted as a small swelling on his top lip,a small cut on corner of his lip and a small bruse to his left eye

Safdar Singh - Ambulance crew - observed Mr Curtis' injury

Sue Field - Ambulance crew - observed Mr Curtis' injury

Nicola Brown - had not been drinking - corroborates Ms Giles account

Kay Green - had been drinking but was not drunk - corroborates Ms Giles account

Vicky Black - had been drinking but was not drunk - corroborates Ms Giles account.

Sgt Yardley - processed Ms Kelly into Custody.

4. VISUAL EVIDENCE. If any, state if '**Key'** and give a brief summary of what it shows. If no visual evidence or if not key, give reasons.

DIRECTOR'S GUIDANCE STREAMLINED PROCESS

POLICE REPORT URN

CCTV has been seized from the night club by Sgt Illingworth. Treated as non key evidence. It is of moderate quality and shows Ms Kelly at the door of the night club door. There is no sound but the images are clear and show her pushing other people out of the queue, waving her arms around. The two blows to Mr Curtis face are clearly captured. She can then be seen running up the street pursued by Mr Graveny.
There is no other CCTV footage from the street, the CCTV is not in a format that can be played at the Police Station without being sent to the force techinical unit (a process that takes around 4 weeks).

5. INJURIES. A medical statement is not needed unless required to interpret x-rays, or otherwise described injuries not visible to the naked eye. A victim/eye-witness/police officer should describe visible injuries, and photographs should be provided if possible.

Mr Curtis describes his injuries as follows:
1. soreness and discomfort to the area of his mouth
2. a small swelling on his top lip
3. a small cut on corner of his lip and
4. a small bruse to his left eye

6. FINGERPRINT/ FORENSIC/ DRUGS EVIDENCE. State how long a full statement will take if necessary. Weight of drugs, number of wraps etc. is useful as is the street value and purity if known. State if drugs field tested and by whom.

No item sent for examination

7. DIP TESTING.

Trigger offence tick if Defendant tested negative Positive for

8. ORDERS ON CONVICTION. State how much compensation is sought (if an estimate say so). An address for compensation must be provided to the prosecutor on form MG6. Consider forfeiture and destruction of drugs/weapons or forfeiture of motor vehicle on driving offences. State if ASBO/SOPO/Football banning/restraint/non-molestation order required and attach the appropriate MG forms with copies for court and defence.

Compensation to Mr Curtis for injuries recieved
Victim surcharge if financial penalty imposed

Defendant 1	T.I.Cs	Attached	Pre-cons/	yes (attach)	No	MG6	attached
			cautions	yes (attach)	No		

DIRECTOR'S GUIDANCE STREAMLINED PROCESS

POLICE REPORT URN

Defendant 2	T.I.Cs	Attached	Pre-cons/ cautions	yes (attach) No yes (attach) No			

OFFICER'S CERTIFICATION – I certify that to the best of my knowledge and belief I have not withheld any information that could assist the defence in early preparation of their case, including the making of a bail application.			
Name of Officer:	DC Holder	Number:	*909*
Signature:		Date:	*Today's date*
email: *Single point of contact*	*909holder@anyforce.pnn.police.uk*		

SUPERVISOR'S CERTIFICATION – *The information in parts 3 and 4 is an accurate summary of the available evidence in this case and complies with all parts of Paragraph 1.5 of the DPP's Guidance for a Streamlined Process. The file has been built to the required standard. If not complete, please use form MG6 to indicate why and when missing information/evidence will be available.*			
Name of Supervisor:	DS Powell	Number:	*203*
Signature:		*Date:*	*(Todays date)*

DIRECTOR'S GUIDANCE STREAMLINED PROCESS

POLICE REPORT URN

Confidential Information not to be disclosed

Not Suitable for conditional caution because

OR

Suitable for conditional caution because the custody officer is satisfied that:

There is sufficient evidence to charge the offence and offender has fully admitted the offence in PACE interview;

The public interest is better served by offering a conditional caution.

Both the circumstances of the offence and the offender make it appropriate to offer a conditional caution.

INFORMATION WHERE A CONDITIONAL CAUTION IS PROPOSED

OFFENDER'S FINANCIAL CIRCUMSTANCES

Compensation is a punishment and is meant to take priority over all but necessary living expenses. Bearing this in mind, where compensation is proposed, provide brief details of the offender's financial circumstances including any major commitments for necessaries. State if in receipt of state benefit and indicate family commitments if any. Express outgoings either as weekly or monthly commitments.

Income		***Outgoings***	
Wages (take home pay):		Rent / mortgage:	
Benefits:		Other essential living expenses:	
Other:			

ATTACH DRAFT MG14

[redacted]

WITNESS STATEMENT

(CJ Act 1967, s.9; MC Act 1980, ss.5A (3) (a) and 5B; Criminal Procedure Rules 2005, Rule 27.1)

URN **05/F5/ /11**

Statement of: **JEROME BALL**

Age if under 18: **OVER 18** *(if over 18 insert 'over 18')*

Occupation: **Police Constable**

This statement (consisting of **3** page(s) each signed by me) is true to the best of my knowledge and belief and I make it knowing that, if it is tendered in evidence, I shall be liable to prosecution if I have wilfully stated in it, anything which I know to be false, or do not believe to be true.

Signature: Date:17/08/2016

Tick if witness evidence is visually recorded ☐ *(supply witness details on rear)*

I am Police Constable 4444 Jerome BALL or Devon Police, currently posted to Centrale Police Station.

On Tuesday 16th August 2016 at about 21:15 hours, I was on mobile uniformed patrol in company with Sergeant 6660 BUSH and Acting Sergeant 7770 MILES when we were deployed to Hot Stuff chicken fast food shop on COMM ROAD, EXETER 19, to a report of a recent robbery which had just a short distance away on BELL STREET near to the junction with LONG STREET, EXETER.

Upon our arrival at the scene at about 21:17 hours, two other Police patrols were already at the scene and dealing with three young females, I then saw a young male sitting on the wall outside of Hot Stuff chicken fast food shop and he identified himself to me as Ryan Sanches (DOB

Continuation statement of: JEROME BALL

16/04/1994) of 11 GORDY ROAD, EXETER (although once in custody, he went on to confirm that his real name was Fredrick Daren TYLER (DOB 27/12/1994) of 25 COURTHOUSE ROAD, EXETER 14) and he confirmed that one of the three girls was his girlfriend.

I then searched TYLER under the provisions of section 1 of the Police and Criminal Evidence Act 1984 for stolen property, this search was negative.

At about 21:20 hours the same day, I cautioned and arrested TYLER on suspicion of robbery, this was as the result of from other Police Officers, confirming that TYLER had been at the scene of the robbery in company with the three young females and that he had been encouraging them to assault the victim during the attack during which a IPHONE7 mobile telephone was stolen, but also that the phone had been passed to TYLER who had dismantled it and removed the sim card, TYLER made no reply to caution and was sat alone in the rear passenger seat of a marked Police car and taken to CRAIG STREET POLICE STATION where his detention was later authorised to allow for the prompt and effective investigation of the offence and to obtain evidence by questioning.

At about 21:25 hours the same day, I seized the following item from TYLER which was later added to the property system at SOUTHERN STREET POLICE STATION:
Exhibit EXT6 - 1 x IPHONE 6S mobile telephone IMEI No. 3333 4444 5555 666.

Signature:		Signature witnessed by:	

At about 22:27 hours the same day, I seized the following items from TYLER which were later added to the property system at SOUTHERN STREET POLICE STATION: Exhibit EXT1 - 1 x left karimor trainer

Continuation statement of: JEROME BALL

Exhibit EXT2 - 1 x right karimor trainer

Exhibit EXT3 - 1 x White combat trousers

Exhibit EXT4 - 1 x SallyHansen coat

On Wednesday 17th August 2016 at about 01:10 hours the same day, I was in company with Constable 3333 WONG when we attended 5 GROVER ROAD, EXETER to conduct a search of the home address of Rochelle MCDANIEL (DOB 09/09/1996) under Section 18 of the Police and Criminal Evidence Act 1984.

During the course of the search, Con 3333 WONG completed the PCE 10 record of search and I conduct a systematic search of MCDANIEL bedroom and those communal rooms which she had access to. No items were seized.

At about 01:30 hours the same day, the search was concluded and the house vacated.

I had no further dealings with this matter.

Signature:		Signature witnessed by:	

[redacted]

Statement completed by: J. BALL No: Con 4444

Contact Telephone Number: #### ### ####

Work Mobile Telephone Number: N/A

Station: Centrale Police Station

Date statement made: 17/08/2016

Time statement made: 02:25

Place statement made: Centrale Police Station

WITNESS STATEMENT

(CJ Act 1967, s.9; MC Act 1980, ss.5A (3) (a) and 5B; Criminal Procedure Rules 2005, Rule 27.1)

URN / / /

Statement of: **MIGUEL LARSON**

Age if under 18: **OVER 18** *(if over 18 insert 'over 18')*

Occupation: **POLICE OFFICER**

This statement (consisting of **X5** page(s) each signed by me) is true to the best of my knowledge and belief and I make it knowing that, if it is tendered in evidence, I shall be liable to prosecution if I have wilfully stated in it, anything which I know to be false, or do not believe to be true.

Signature: Date:17/08/11

Tick if witness evidence is visually recorded ☐ *(supply witness details on rear)*

I am Constable 2222 LARSON of Devon Police currently stationed to SOUTHERN STREET Police Station. On Tuesday August 16th 2016 at 21:15 hours I was on duty in company with Constable 3333 WONG and Sergeant 4440 Thomas. At this time I was a front seat passenger in an unmarked hire car, whilst Constable 3333 WONG drove the vehicle and Sergeant Thomas sat in the rear passengers side.

At this time I was made aware of an incident of Robbery that had just taken place close to the location of Long Street and its junction with Bell Street and directly outside Lidl Exeter. The victim had reported to Centrale Police Station and informed a female member of staff at the front desk of the incident. This female colleague then stated that the victim had been subjected to two violent attacks by two females and during this attack her mobile phone was taken from her. The victim reported that she had sustained injuries from the

incident and stated that the two females involved where now stood outside Hot Stuff Fast

Signature:		Signature witnessed by:	

Food Restaurant located on COMM Road Exeter. A description of the two females was broadcast over the airwaves and also their current location. The description given was that of a two white females one with long dark hair and the second female with long blonde hair. At this point I decided to make to the location as we were currently headed towards the Centrale area heading down Arbour Road Exeter.

We arrived at COMM Road moments later and I saw Hot Stuff Fast Food Restaurant on my right hand side. I saw one female outside Hot Stuff. I then saw a second female come out from the Off Licence next door to Hot Stuff to my left hand side. I would describe the 1st female as being white, slim build, long dark hair, approximately 19 years old and wearing a skirt and what looked like football socks. I would describe the second female as being white, slim build, long blonde hair, approximately 20 years old, wearing a hairy styled body warmer, white cotton vest, blue jeans and pumps.

My view of both females was not obscured as the street lights illuminated the road side along with the shop fronts. I was stood at the closest point no further than touching distance from the two females.

Both females matched the description given by the female police officer as they stood together talking. I then alighted from the police vehicle and went to speak to both females on the road side outside Hot Stuff.

Signature:		Signature witnessed by:	

At 21:20 hours I cautioned and arrested a female who I now know to be Gail ROSE 06/06/97 of 222 Furze Road Exeter. I would describe ROSE as a white female with blonde long hair and wearing white pumps, blue jeans a light brown body warmer and white cotton vest. ROSE also wore a red bandana in her hair and wore some jewellery on her wrists. ROSE was approximately 5 feet five inches tall and of slim build. ROSE replied "HERE IT IS" and placed her hand down the front of her blue denim jeans and pulled out a IPHONE7 mobile telephone in black IMEI number 0000111122223333444. I noticed that ROSES trousers did not have any pockets at the front. At 21:25 hours I seized this item as my exhibit EX000000MOB and placed the item into a sealed forensic bag.

The other female later identified herself to me Sonja WEBER 05/07/96. WEBER was arrested by Constable 3333 WONG and Constable 1111 PADILLA.

I then handcuffed ROSE to the front checking for fit and double locking and then placed her into the rear of a marked police vehicle. At this point ROSE lifted her hands upwards together towards her chest placed her right hand down the front of her cotton vest and produced a blue

Signature:		Signature witnessed by:	

coloured 02 sim card from her bra serial number 8944110065112345678 9AB1. I took hold of this item and seized it as my exhibit EX000000SIM at 21:29 hours. ROSE stated " IT'S THE SIM FOR ER PHONE"

I opened the mobile phone to find that there was no sim card within the rear of the mobile phone. I confirmed with the female officer at Centrale Police Station that the victims phone was one in the same and that her sim card related to a 02 sim card in blue. This was confirmed by the description given by the victim. I later booked both of these items into the crime exhibit store at SOUTHERN STREET Police Station CE 987654.

I then sat in the rear of the marked police vehicle whilst another colleague drove the vehicle to SOUTHERN STREET Police Station where ROSES detention was authorised.
Whilst at SOUTHERN STREET Police Station I seized the following items of clothing from ROSE at 22:45 hours.
EX000001CLO 1X RIGHT TRAINER.
EX000002CLO 1X LEFT TRAINER.
EX000003CLO 1X PAIR OF JEANS.
EX000004CLO 1X GILLETT.
EX000005CLO 1X VEST TOP.

I later booked the clothing into the crime exhibit store at SOUTHERN STREET Police Station. Whilst booking ROSE into custody I noticed that she was wearing a red bandana which the custody officer placed into her personal property bag. ROSE had some loose change and bus pass for the day along with a lighter.

Signature:		Signature witnessed by:	

At 01:10 hours the next day 17th of August 2016 I conducted a Section 18, 5 search of ROSES ground floor bedroom at 222 Furze Road Exeter. The search was authorised by Inspector Rashford at 22:55 hours the previous day. I was in company with Constable 5550 Judy BANKS, Constable 1111 PADILLA and Sergeant 4440 Thomas.

The search was completed at 01:25 hours and resulted negative. Some items of clothing were taken from ROSES bedroom as she no longer had any to wear. I completed the PACE 10 Search booklet and produce this paperwork as my exhibit EX000006CLO.

I then conducted a further search at the home address of WEBER 1 Flitwick Rise. The search was negative and codes of conduct were complied with. Items of clothing were taken from the bedroom of WEBER.

At 03:30 hours I placed all my exhibits into the secure CID store based at SOUTHERN STREET.

I had no further dealings.

Signature:		Signature witnessed by:	

[redacted]

Statement completed by: LARSON No: 2222

Contact Telephone Number:

Work Mobile Telephone Number:

Station: SOUTHERN STREET

Date statement made: 17/08/16

Time statement made: 03:45

Place statement made: SOUTHERN STREET

[redacted]

WITNESS STATEMENT

(CJ Act 1967, s.9; MC Act 1980, ss.5A (3) (a) and 5B; Criminal Procedure Rules 2005, Rule 27.1)

URN / / /

Statement of: **DANA** **WONG**

Age if under 18: **OVER 18** *(if over 18 insert 'over 18')*

Occupation: **Police Officer**

This statement (consisting of page(s) each signed by me) is true to the best of my knowledge and belief and I make it knowing that, if it is tendered in evidence, I shall be liable to prosecution if I have wilfully stated in it, anything which I know to be false, or do not believe to be true.

Signature: Date:17/08/2016

Tick if witness evidence is visually recorded ☐ *(supply witness details on rear)*

I am Constable 3333 WONG of DEVON POLICE currently stationed at FARADAY STREET POLICE STATION. On Tuesday 16th August 2016 I was on duty in plain clothes patrol in company with Constable 2222 LARSON and Acting Sergeant 4440 THOMAS.

At approximately 21:10 hours I was informed via my personal radio that a female had been subject to a robbery were she had been assaulted just prior to her IPHONE7 mobile phone being stolen on BELL STREET Exeter. Descriptions of the three female offenders were passed over the open air and I began to make my way to the location in order to conduct an area search for the offenders.

At approximately 21:15 hours we received a further report that the three female offenders were on Comm Road Exeter outside of Hot Stuff chicken fast food shop. I made directly to

the location and could immediately see three females sat on a wall directly outside of Hot Stuff chicken. The females fit the description passed as the offenders, I alighted the police vehicle along with my colleagues and spoke with one of the females who identified herself as ROCHELLE MCDANIEL, D.O.B 09/09/1996, 5 GROVER ROAD Exeter. MCDANIEL is a white female, approximately 5 foot tall, very slim build, long dark hair, wearing a
red zip up jacket with a cream vest top and a black skirt, MCDANIEL was also wearing green socks with a spot pattern on them and Black Reebok Classic trainers.

At 21:20 hours I cautioned and arrested MCDANIEL on suspicion of Robbery to which she made no reply. I then conducted a section 32 P.A.C.E search of MCDANIEL for the stolen IPHONE7 mobile phone with a negative result.

I am aware that a further two females and a male were also arrested on suspicion of robbery.

MCDANIEL was transported to a CRAIG STREET custody suite in a unmarked police vehicle were the circumstances of the arrest were relayed to the custody sergeant who later authorised her detention to allow for the prompt and effective investigation of the offence and to obtain evidence by questioning.

At 23:05 hours the same day, I seized the following items of clothing from MCDANIEL which was later added to the property system at SOUTHERN STREET POLICE STATION:

1 x RED ZIP JACKET - Exhibit Reference EXO/01.

1 x LEFT black Reebok TRAINNER - Exhibit Reference EXO/02.

Continuation statement of: DANA WONG

1 x RIGHT black Reebok TRAINNER - Exhibit Reference EXO /03.

1 x BLACK SKIRT - Exhibit Reference EXO /04.

1 x GREEN SOCK - Exhibit Reference EXO /05.

1 x GREEN SOCK - Exhibit Reference EXO /06.

1 x CREAM VEST TOP - Exhibit Reference EXO/07.

On Wednesday 17th August 2016 at about 01:10 hours the same day, I was in company with Constable 4444 BALL when we attended 5 GROVER ROAD, EXETER to conduct a search of the home address of Rochelle MCDANIEL (DOB 09/09/1996) under Section 18 of the Police and Criminal Evidence Act 1984.

During the course of the search I acted as the loggist and completed the PCE 10 record of search and Constable 4444 BALL conducted a systematic search of MCDANIEL bedroom and the communal rooms which she has access to. No items were seized.

At 01:30 hours the same day, the search was concluded.

I had no further dealings with this matter.

Signature:		Signature witnessed by:	

[redacted]

Statement completed by: Con WONG No: 3333

Contact Telephone Number:

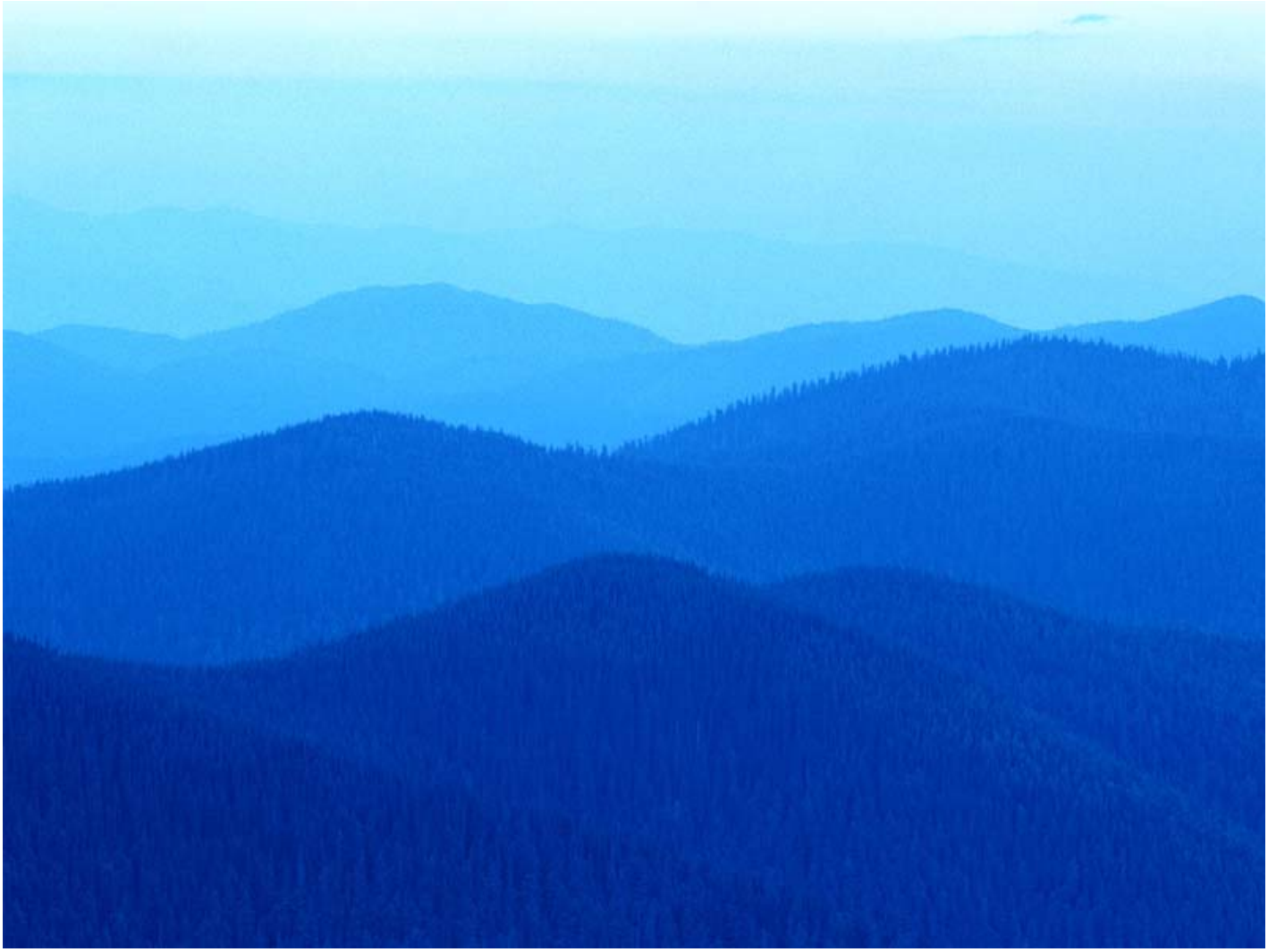
Work Mobile Telephone Number: #### ### ####

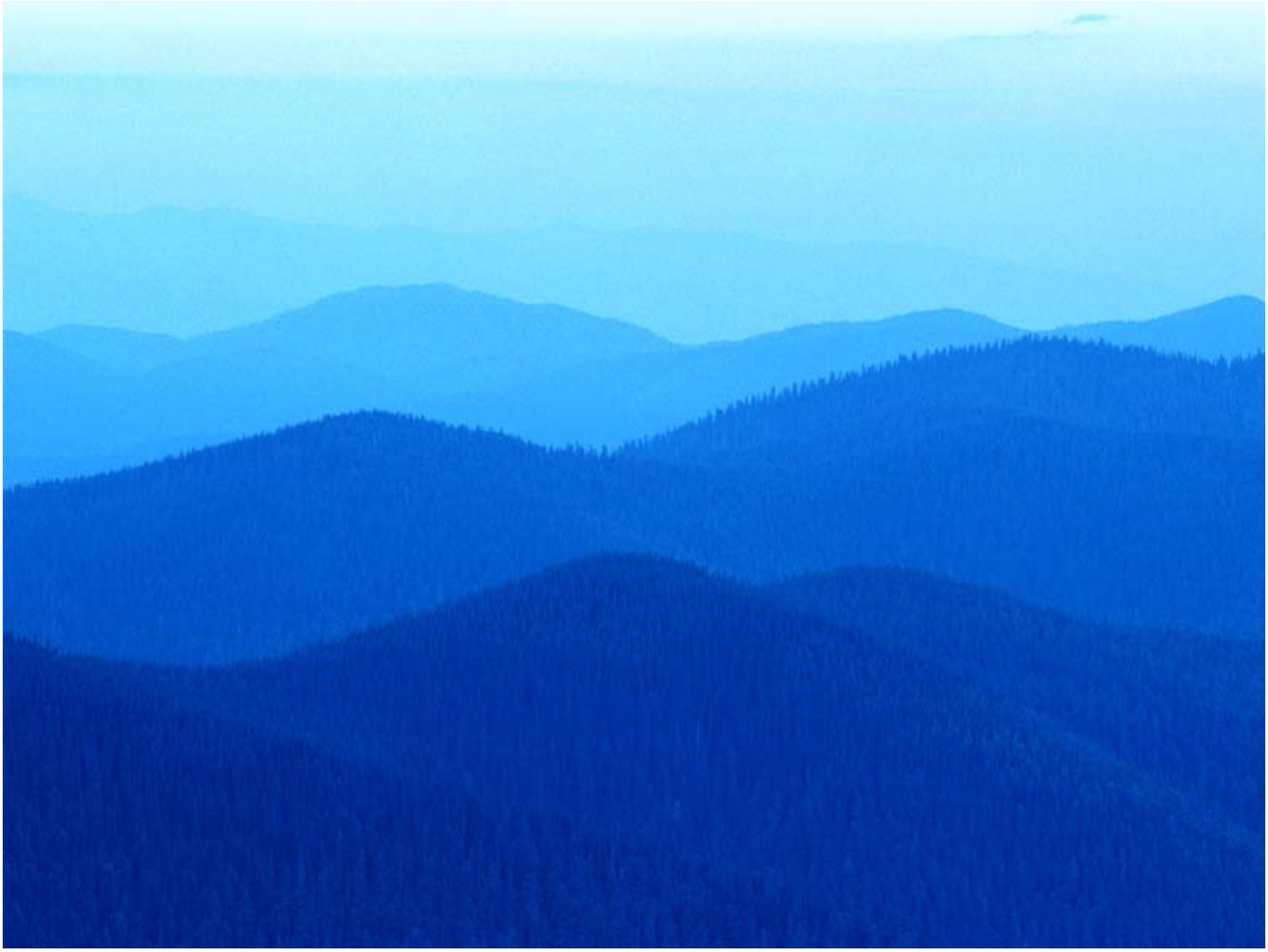
Station: SOUTHERN STREET POLICE STATION

Date statement made: 17/08/2016

Time statement made: 03:15 HOURS

Place statement made: SOUTHERN STREET





16/01/17 11:01

THIS PRINTOUT IS PRODUCED FOR THE USE OF PROSECUTORS ONLY AND MUST NOT BE DISCLOSED TO ANY OTHER PARTY

DATA PROTECTION LEGISLATION
THESE PERSONAL DATA ARE PROVIDED TO YOU FOR THE AGREED SPECIFIED PURPOSE(S).
KEEP THE DATA SECURE AND PROTECT THEM AGAINST LOSS OR UNAUTHORISED ACCESS.

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PRINT OF PNC RECORD - PNCID : 00/111222C

PRINT FOR : 3330 PRECONS FOR CPS

TOTAL NUMBER OF PAGES ATTACHED 4

PLEASE NOTE THAT IN THE ABSENCE OF FINGERPRINTS, IDENTITY CANNOT BE POSITIVELY CONFIRMED WITH THE SUBJECT OF YOUR ENQUIRY AND YOU SHOULD CONFIRM THE INFORMATION WITH THE PERSON

16/01/17 11:01 PAGE 1 OF 4

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DATA PROTECTION LEGISLATION
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SURNAME : MCDANIEL
FORENAME(S) : ROCHELLE
LOUISE
BORN : 09/09/96 EXETER
ADDRESS : 5 GROVER ROAD
EXETER DEVON

CRO NUMBER : 345543/99 PNCID : 00/111222C

ALIAS NAMES (1)

1 KING, ROCHELLE

SUMMARY OF CONVICTIONS AND REPRIMANDS/WARNINGS/CAUTIONS

NO CONVICTIONS

NO REPRIMANDS/WARNINGS/CAUTIONS

END OF SUMMARY OF CONVICTIONS AND REPRIMANDS/WARNINGS/CAUTIONS

NOTE : DETAILS OF ANY NON-CONVICTION, PENALTY NOTICE OR NOT GUILTY DISPOSALS HELD FOR THIS SUBJECT ARE NOT SUMMARISED HERE.
IF ANY SUCH DISPOSALS EXIST, FULL DETAILS ARE LISTED IN THE FOLLOWING PAGES

```
  16/01/17 11:01                                          PAGE 2   OF 4
NAME: KING, ROCHELLE LOUISE                                PNCID: 00/111222C
-------------------------------------------------------------------------------
                          PENALTY NOTICE(S)
                          -----------------

1     PENALTY NOTICE REF:  65H0/0511182692
      PENALTY NOTICE NO :  J/40399955
      17/07/15          DEVON POLICE

    1  THEFT - SHOPLIFTING                          PENALTY NOTICE 40.00
       ON 17/07/15
       THEFT ACT 1968 s.1
-------------------------------------------------------------------------------
END OF PENALTY NOTICE(S)
```

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  16/01/17 11:01                                          PAGE 3   OF 4
NAME: KING, ROCHELLE LOUISE                                PNCID: 00/111222C
-------------------------------------------------------------------------------
                           REMAND / BAIL DETAILS
                           ---------------------

ARREST/SUMMONS  REF : 11/0000/00/0000001A
      17/08/16              DEVON  POLICE
    REMANDED ON POLICE BAIL
    CONDITION  1 : CONDITION:  NOT TO APPROACH  BY SELF SERVANT  OR
                   AGENT LOUISE GUERRERO
    NEXT APPEARING ON 30/08/16 AT DEVON  POLICE
-------------------------------------------------------------------------------
ARREST/SUMMONS  REF : 00/0000/00/0000001A
      24/11/16              DEVON  POLICE
    REMANDED ON POLICE BAIL
    CONDITION  1 : CONDITION:  NOT TO APPROACH  OR COMMUNICATE  WITH
                   CO-ACCUSED,  NAMELY;  SONJA WEBER,  GAIL ROSE  AND
                   FREDRICK TYLER  BY SELF,  SERVANT  OR AGENT
    CONDITION  2 : CONDITION:  NOT TO APPROACH  OR COMMUNICATE  WITH
                   PROSECUTION  WITNESSES,  NAMELY;  PENNY  GUERRERO
                   AND FRANK MORAN  BY SELF,  SERVANT  OF AGENT
    NEXT APPEARING ON 11/01/17 AT DEVON  POLICE
-------------------------------------------------------------------------------
END OF REMAND DETAILS


                          LAST PERIOD IN CUSTODY
                          ----------------------

LAST PERIOD IN CUSTODY NOT RECORDED
-------------------------------------------------------------------------------
END OF CUSTODY DETAILS
```

16/01/17 11:01 PAGE 4 OF 4
NAME: KING, ROCHELLE LOUISE PNCID: 00/111222C

IMPENDING PROSECUTION(S)

IMPENDING PROSECUTION(S) : 2 OFFENCE(S) : 2

2 THEFT AND KINDRED OFFENCES (2016-2017)

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1 ARREST/SUMMONS REF : 11/0000/00/0000001A
DEVON POLICE REMANDED ON POLICE BAIL
MCDANIEL,
ARRESTED ON 16/08/16 FOR THE FOLLOWING OFFENCE(S):
1 ROBBERY
ON 16/08/16
THEFT ACT 1968 s.8

PROSECUTING AGENT : CPS

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2 ARREST/SUMMONS REF : 00/0000/00/00000001A
DEVON POLICE REMANDED ON POLICE BAIL
MCDANIEL,
ARRESTED ON 24/11/16 FOR THE FOLLOWING OFFENCE(S):
1 ROBBERY
ON 16/08/16
THEFT ACT 1968 s.8
OFFENCE COMMITTED ON BAIL

PROSECUTING AGENT : CPS

END OF IMPENDING PROSECUTION REPORT(S)

END OF PNC RECORD PRINT